GENERAL CONDITIONS OF USE (GCU)

Version 7.0 dated 4th February 2025

These GCU define the terms and conditions which apply between Yes We Hack, a simplified joint stock company with a share capital of EUR 74 430,12, with its seat at 14 rue Charles V - 75004 Paris, registered in the Paris Trade Register under number 814 037 214 (the "**Company**") and any individual registering on the Company's platform (the "**User**") accessible via the address: https://yeswehack.com/auth/register (the "**Platform**"). The Platform is intended to support organizations in finding Vulnerabilities in their IT systems and offers five (5) different types of services: (i) Bug Bounty, (ii) VDP, (iii) Featured VDP, (iv) Pentest Management, and/or (iv) Attack Surface Management (together, the "**Services**") to which companies or organizations can subscribe (the "**Customer**").

A User can refer to (i) a **Customer User** or (ii) a **Security Researcher**. Certain specific provisions in these GCU will apply either to a Customer User or a Security Researcher and a User should refer to the provisions relevant to them. Any capitalized terms used herein shall have the meaning given to them in Appendix 1.

The Company reserves the right to make any changes at any time to these GCU, the Platform and any of its related Services. Users will be notified upon their next login to their account and asked to accept the new GCU. If the User does not agree with the new provisions, the Company shall be entitled to deny the User access to and use of the Platform and its related Services.

1. PREREQUISITE

Acceptance of incorporated terms. Access to and use of the Platform is subject to the prior acceptance of these GCU. The use of the Wallet for the payment of Rewards to Security Researchers, in the context of Bug Bounty Service, is subject to the prior and unconditional acceptance of the PSP's Terms and Conditions available at https://mangopay.com/terms-and-conditions/payment-services which are hereby incorporated.

Age requirement. Access to the Platform is forbidden to minors (under a certain age which may differ depending on User's nationality).

Behavior and proper use of the Platform. Each User shall (i) behave in a professional, respectful, and courteous manner when interacting with the Company and/or each other, and (ii) not make any improper or derivative use of the Platform regarding its purpose as set out in these GCU. Any inappropriate or abusive behavior or improper use of the Platform by a User will not be tolerated by the Company. In such circumstances, the Company may, at its sole discretion, terminate a User access and/or use of the Platform temporarily or permanently. The Company reserves the right to escalate or de-escalate the severity of enforcement and sanctions in accordance with the nature of the breach and irrespective of previous breaches.

2. USER STATUS

Independence of Security Researchers. The Security Researchers are not employees, contractors, or agents of the Company, but independent third parties who wish to participate, on an occasional and non-exclusive basis, in Customers' Programs or penetration tests (in the context of PTM Service). Nothing hereunder shall be construed as to create any dependency or subordination, whether direct or indirect, with the Company or a Customer.

Authority of Customer Users. If access to the Platform is intended for using the Services on behalf of a Customer, the Users warrant that they have been duly designated to represent the Customer and any action or omission of the Customer User shall be deemed as if such acts and omissions were the Customer's own. The Company reserves the right to request, at any time, additional documents attesting to the power of attorney of the person authorized to represent the Customer.

Conflict of interest. Security Researchers must avoid any situation that could create a conflict of interest with respect to a Customer. Conflicts of interest may arise, without limitation, in the following circumstances or as defined by the Customer in the rules of the Program: (i) when a Customer User is also registered on the Platform as a Security Researcher, or (ii) when the Security Researcher is an employee or contractor of the Customer (except for PTM Service). In such circumstances, the Security Researcher must promptly notify the Customer. Unless expressly authorized by the Customer, the Security Researcher undertakes not to participate in the Customer's Programs.

3. REGISTRATION PROCESS

Creating a User account and accessing the Wallet. Users must provide certain information when filling out the registration form available on the Platform. Additional information will be required to create a Wallet. Users are responsible for updating their personal information and expressly acknowledge that the Company cannot be held liable for any misrepresentation regarding their identity. If any information proves to be false, incomplete, or obsolete, the Company reserves the right to refuse or rescind registration and/or interrupt access to the Platform.

Security Researcher's Wallet. Subject to providing the required information, Security Researchers will have a Wallet opened in EUR currency on the Platform for the settlement of their Rewards. For each Bug Bounty Program under a different currency, a new Wallet will be created in the relevant currency.

Customer's Wallet. Upon activation of its subscription on the Platform the Customer is able to consult its balance, and any subsequent payments, through its dedicated account on the Platform. To reward a valid Vulnerability Report, the Company shall ensure payments of Rewards to the Security Researchers using the Wallet, after validation by the Customer on its account.

Management of Wallet. Payments for Rewards are deposited, stored, and paid through the relevant Wallet managed and controlled by the PSP. The Security Researcher or Customer User is informed of the balance of the Wallet, through their relevant account on the Platform. Security Researchers will also receive the summary of amounts paid on an annual basis.

4. SERVICES

4.1 Users' role

Security Researchers' Participation. When invited to a Program, the Security Researchers are free to decide whether they wish to participate and determine at their sole discretion the means to be used to conduct Tests, subject to compliance with the rules of the relevant Program. When performing the Tests, the Security Researchers acknowledge to be tacitly bound by the rules of the Program set forth by the Customer without the need to expressly agree to those rules. The Security Researchers accept that the rules of the Program have a contractual value between them and the Customer and may not, therefore, contest the admissibility, opposability and/or enforceability of these rules.

Customer Users' Program Management. Customer Users who have the authority to represent and bind the Customer in the management of the Services (the "**Customer Representative**") designate Customer Users of their choice for the publication and management of the Customer's Program, including the selection of Security Researchers. The Customer Representative will be able to define roles with specific access rights for each User depending on their function and intended involvement. The Program is described by the Customer User in the description/dedicated sheet online on the Platform, including scope, configuration of public or private mode (for Bug Bounty Programs), designation of the Systems, type of tests, eligibility, periodicity, exclusions, Rewards (for Bug Bounty Programs), etc. Once a Program is published and a Vulnerability Report is submitted by a Security Researcher, the Customer User can validate said report and, where applicable, reward the Security Researcher as described in Article 4.3. The Customer User can also attribute points to the Security Researcher according to the criteria defined in the Platform's Helpcenter.

4.2 Tests

Security Researchers' scope. Security Researchers do not need to consult the Customer prior to performing Tests and will act at their convenience to carry these out as long as they are acting within the rules of the Program defined by the Customer. Security Researchers understand and agree that Tests can only be performed subject to the strict rules of the relevant Customer's Program and that failure to comply with these could trigger their civil and/or criminal liability.

As such, Security Researchers agree to the following:

- Strictly limit their action to the scope defined in the relevant Program.
- Not repeat any Test whatsoever outside the scope strictly defined by a Program, or once a Program is closed.
- Comply with any data privacy policy set out in a Program.
- Keep strictly confidential the Customer's information to which they may have had access during the Tests, including the Vulnerabilities and, if applicable, any Personal Data, (together the "Data") meaning that Security Researchers shall:
  - Use the Data only for purposes strictly necessary for the proper performance of the Tests.
  - Not communicate the Data to any third-party in any way and by any means whatsoever (in particular, oral, paper, digital).
  - Report any obvious anomaly to the Company if Security Researchers notice security failures on the Platform as well as to the Customer for any obvious anomaly noticed during the Tests.
  - Not to use the Data for the development, production or marketing of a system that infringes Customer's rights, its activity and/or competes directly or indirectly with it.
  - Warrants to respect Customer's Intellectual Property Rights, at all times and in particular, during the performance of the Tests, including but not limited to the software used and operating licenses.
- Not participate in any private Bug Bounty Program to which they have not been invited by a Customer or in a Featured VDP Program if they do not meet the conditions set out in the Program.

Security Researchers acknowledge and agree that the Company acts as an intermediary and does not intervene in any way in the relationship with the Customer. In case Security Researchers have contact with Customers, they remain solely responsible for the content of their exchanges with the Customer.

Security Researchers collaborative work. When allowed by the Customer Representative in the Program, the Security Researcher can collaborate with several Security Researchers to submit a report together and share the Reward. Security Researcher collaboration shall be effective only for Security Researchers using the Platform and accepting these GCU. It is the Security Researcher's responsibility to ensure that any such collaboration is compliant with this section.

Customer User's involvement. The Customer User shall carry out and maintain the backup of its data, files, supports against destruction, loss, or alteration. The Customer User expressly acknowledges that it will not be consulted prior to the completion of the Tests during the period defined in the Program. In other words, Security Researchers will test the System during the period specified in the Program without consulting the Customer User. The Customer User acknowledges having been informed by the Company of the importance of preparing the Tests. Various tips on how to prepare the Tests can be found in the Platform's Helpcenter.

*4.3 Security Researchers and Customer Users' collaborat*ion

Customer Users shall make a good faith effort to remain in a prompt and transparent communication with the Security Researchers and the Security Researchers will make a good faith effort to clarify and substantiate the Vulnerability Reports submitted upon Customer Users' request.

The Customer User will determine whether Vulnerabilities are valid and their severity level. Security Researchers who were first to uncover a valid Vulnerability and who established a clear Vulnerability Report with a severity level in accordance with the relevant Bug Bounty Program will be rewarded by the Customer in the form of Rewards. The Company will not be liable for any unpaid Rewards to Security Researchers. In addition, Security Researchers will gain points in the Security Researchers' ranking displayed on the Platform only for participating in a Bug Bounty Program (i.e., Security Researchers will not receive any ranking points for participating in a Featured VDP Program).

In the context of a Program, subject to the Security Researcher's compliance with the rules set by the Customer and the GCUs, the Customer User acknowledges that (i) the Tests conducted by the Security Researchers are authorized and operated with the Customer's express consent and under its sole responsibility; and (ii) the acts performed by the Security Researchers may not be prosecuted under criminal or civil law.

4.4 Vulnerability Reports' ownership

Upon submitting Vulnerability Reports to the Customer and receiving payment of the Reward, the Security Researcher agrees to transfer full and exclusive ownership of the material property rights in the Vulnerability Reports to the relevant Customer. This transfer includes all tangible elements and supporting materials within the Vulnerability Reports necessary for Customer's use, reference and application across all forms, presentations, and processes, both current and future. If a Vulnerability Report is written by more than one Security Researcher, such a transfer applies proportionally to the share of each Security Researcher's contribution.

The Security Researcher warrants to be the sole and exclusive editor of whole or part (in case of a Security Researcher collaboration as specified in 4.2) of the Vulnerability Report. Consequently, to the fullest extent permitted by applicable law, the Security Researcher shall be held liable, under the conditions provided for in the GCU, by the Customer in the event of any breach of this provision, including but not limited to any third-party claims arising from unauthorized use or misrepresentation of the Vulnerability Report's contents.

4.5 Security

Platform's Program. The Platform is subject to its own Program as displayed on the Platform. Users shall inform the Company without delay, by any means, of any error, fault, or irregularity that they find when using the Platform as soon as they become aware of it. Users shall not attempt to alter the headers or attempt to manipulate the pages of the Platform in such a way as to disguise, hijack, or modify the Platform. It is also prohibited to create a work or site derived from all or part of this Platform, or to resell or redistribute the Company's data.

Means of authentication. The login/password combination allowing Users to access their account is strictly personal and confidential. Accordingly, they shall be kept secret, and not be communicated to third parties in any form whatsoever. Users acknowledge that any use of the Platform is made under their full and complete responsibility. Consequently, Users acknowledge that the actions carried out on their account are presumed to be made by them and will be charged to them, it being up to the User to provide proof to the contrary. The Company reserves the right to suspend Users' access to their account in case of proven compromise or in case of suspicion of compromise of their means of authentication.

Technical means to access the Platform. It is the responsibility of Users to equip themselves in an appropriate manner, notably in terms of computer and electronic communications, to access the Platform and related Services and to take all appropriate measures to protect themselves, the Company and the tested Systems from any attack or damage that could affect the data, software or contents stored on the Platform. The Company is not responsible for any depreciation of a User's computer media. Furthermore, the User acknowledges that it knows and understands the Internet and its limitations and, in particular, its functional characteristics and technical performance, the risks of interruption, the response times for consulting, querying or transferring information or the risks inherent in any transfer of data. The Company is not liable for the unavailability of networks that are not entirely under its direct control.

Security Researchers' responsibility. Security Researchers shall not hinder the proper functioning of the Platform in any way whatsoever, notably by transmitting any element likely to contain a virus or malicious program likely to damage or affect the Platform and/or the Services and, more broadly, the information system of the Company and any of its Customers or business partners. All costs and authorizations required to connect, access, and use the Platform are and remain the Security Researcher's sole responsibility.

4.6 Availability of Platform

Platform Maintenance. Except in the case of Force Majeure, the Company shall, as part of a duty of best endeavors, ensure the availability and accessibility of the Platform. Nevertheless, control and maintenance operations can be carried out at any time. The Company cannot be held liable for any resulting consequences for the User.

4.7 Suspension / Termination

The Company reserves the right to temporarily suspend all or part of the Platform and Users' account for reasons related to the security of the Platform and/or Services, Users' security or a breach or suspected breach by the Users of any of their obligations hereunder. The Company also reserves the right to unilaterally terminate these GCU for any serious and/or repeated breaches of a User's obligations hereunder. Such termination will be done as of right, without delay and without prejudice to the damages that the Company could seek.

A User may, at any time, without prior notice and without having to justify the reasons, deactivate its account. Deactivation of the User's account will result in immediate termination of these GCU.

5. FINANCIAL CONDITIONS *(applicable only to Security Researchers participating in Bug Bounty Programs)*

Invoicing mandate. To allow the Company to invoice in their name and on their behalf the Rewards awarded to them, Security Researchers expressly and unconditionally agree to the terms of the Invoicing Mandate (Appendix 2). It is expressly agreed that the Invoicing Mandate must be duly completed and accepted by the Security Researchers in their personal account. Failing this, any operation initiated by the Security Researchers will not give rise to payment.

Know Your Customer (KYC) checks. KYC checks on the Security Researcher are a mandatory requirement and performed by the Company's PSP for complying with the payment services regulation. Once the KYC process is successfully completed, Security Researchers will be identified as "KYC Verified" on the Platform.

Rewards. Upon submitting a valid Vulnerability Report and subject to the Security Researchers' compliance with their obligations outlined in the relevant Bug Bounty Program, the Customer User will, at its sole discretion, determine and issue Rewards which will be paid to the Security Researchers using their Wallet. The Rewards are expressed in the Program currency, VAT included. Any currency conversion charges shall be borne by the Security Researchers.

Security Researchers' status. Security Researchers are informed that their activity on the Platform is likely to be subject to affiliation to a specific legal status. Security Researchers shall therefore make the necessary enquiries and carry out the required formalities to acquire the legal status relevant to their situation. Security Researchers are also made aware that the income derived from their activity on the Platform is subject to various legal, social, accounting and tax requirements, notably depending on fiscal territoriality. Security Researchers hereby expressly acknowledge that it is their sole responsibility to enquire about these requirements and to comply with them. Security Researchers shall make all declarations required by tax authorities and social security bodies to which they belong, depending on status and country of residence in and outside of the European Union.

Company's obligations towards Security Researchers. The Company can under no circumstances be involved in any of the above steps and its liability can, under no circumstances and for any reason whatsoever, be sought in relation to any of these legal, social, accounting and tax obligations. The Company's obligations are strictly limited to:

- informing Security Researchers of the existence of such requirements which are to be carried out by the Security Researchers, at their own expense, and
- providing them with a document summarizing all transactions made on the Platform.

6. INTELLECTUAL PROPERTY

The Platform IPRs. The Company does and will retain all proprietary and IPRs, title, and interest in and to the Platform and the Materials. For the purpose of this Article, "**Material**" includes any materials made available to the User by the Company (including but not limited to all accessible information, text, photos, images, sounds, data, databases and standard templates of Programs

and templates of Vulnerability Reports, including the underlying software and other technology). The User may not under any circumstances (except under the limited exception of VDP) store, reproduce, represent, modify, transmit, publish, adapt on any medium whatsoever, by any means whatsoever, or use in any way whatsoever, the elements of the Platform and/or the Materials without the prior written permission of the Company.

Each party is and will remain the owner, as far as it is concerned, of its distinctive signs, namely trademarks, corporate and other names, trade names, brand names and domain names. Reproduction, imitation, or affixing, in whole or in part, of trademarks or designs or models belonging to the Company is strictly prohibited without its prior written consent. The User shall respect all mentions relating to the Intellectual Property Rights appearing on the Platform and/or the Materials and shall not alter, delete, modify, or otherwise infringe upon them.

Platform Data. The Company retains exclusive ownership of the User interactions, statistical information, and metadata compiled, aggregated, or generated within the Platform (the "Platform Data"). This Platform Data is protected under all applicable laws, and Users acknowledge that they have no ownership rights in the Platform Data and agree not to extract, use, or replicate all or part of the Platform Data without the Company's prior written consent.

7. CONFIDENTIALITY

Users have an obligation to keep confidential all information (i) to which they have access, (ii) brought to their knowledge, or (iii) which they possess in the context of the Services, whether in oral or written form and whatever the medium, irrespective of whether it is explicitly indicated to be confidential or not. Users shall not disclose or make available such information to any third-party for any reason whatsoever and this regardless of the legal and/or economic ties that a User may have with such third-party.

At the end of a Program, Security Researchers will delete from their systems all Customer's information and data of any kind, including Personal Data and Vulnerability Reports they created. Security Researchers shall produce, at any time and upon Customer's first request, any certificate attesting to the deletion of the said information.

8. PERSONAL DATA

For the purpose of providing access to its Platform, the Company processes the Personal Data of the Users, as a data controller or joint controller with its payment service provider. The details of these processing activities are available in the Platform Privacy Policy at: https://yeswehack.com/auth/register.

As part of the performance of the Tests and depending on the scope of a Program, Security Researchers may have access to Personal Data processed by the Customer. Security Researchers shall ensure the security and confidentiality of said Personal Data and shall take all necessary technical and organizational measures to prevent the destruction, loss, alteration, unauthorized disclosure, or access to the Personal Data, whether accidental or illicit. Security Researchers shall not make any use or process such Personal Data and shall comply with any data privacy policy set out in a Program.

A User can exercise its privacy rights by writing to the following address: privacy@yeswehack.com

9. LIABILITY

Company's liability. The Company shall under no circumstance be liable for:

i. use or misuse of the Platform or Services, including but not limited to Customer User's failure in the definition and management of the Program (i.e., inaccuracy, error, omission), nor for any malfunction of the Platform resulting from the User, or a third party's actions or omissions;
ii.
iii. non-compliance with these GCU, violation of the rules of the Program or any other agreement by the Security Researchers;
iv. suspension of access to the Platform and/or the Services under the conditions defined in Article 4.6; and

v. incidents due to the use of Internet (e.g., loss of connectivity…).

Any reputation, classification, or description of a Security Researcher's skills in connection with the Bug Bounty Service is for information purposes only. Any selection of a Security Researcher is made by the Customer User and as such, shall be decided at the Customer's discretion and under its sole responsibility.

The Company provides support in the drafting of the Programs and Vulnerability Reports and intervenes, as part of a Program, only as an intermediary to introduce Security Researchers to the Customers and its related Customer Users. The Company shall therefore not be liable for any damage caused by a Customer, a User, or a Security Researcher's failure to perform their obligations, whether partially or totally.

The Company does not propose nor make any modification/adaptation to the Vulnerability Reports. Therefore, the Company shall not be liable in any way for the content of any Vulnerability Report, including but not limited to (i) any error or omission, or (ii) any loss or damage of any kind resulting from the use of a Vulnerability Report.

Security Researchers' liability. The Security Researcher is responsible for all damage caused to the Company and/or other Users. The Security Researcher agrees to indemnify the Company and/or Users, in case of any order to pay damages and interest that the Company or Users might incur as a result of non-compliance with these GCU or to damages caused to others or to itself. Any action taken outside the limits set by a Program may result in civil and/or criminal liability.

Customer Users' liability. The Customer User is solely responsible for designating the Systems, inviting Security Researchers as part of its Private Programs, and shall regularly review and maintain updated the list of the Systems to ensure the Customer is duly authorized to have the Systems tested and monitored. In the context of the ASM Service, findings generated into the Platform must be qualified by the Customer User (i.e., validated as Vulnerabilities). The Customer User must accept or refuse the submitted Vulnerabilities.

10. FAIR USE OF COMPANY ASSETS

Users acknowledge that the Company's reputation, goodwill, and Customer/User base are valuable business assets. Accordingly, Users agree not to:

i. Represent themselves as an agent, employee, or affiliate of the Company outside the scope of their engagement.
ii. Use the Company's name, brand, logo, or any proprietary/confidential information to solicit business for personal or third-party gain without prior written consent.

Nothing in this clause shall prevent Users from engaging in lawful and fair competition or unreasonably restrict their ability to conduct business or provide services, provided such activities do not involve the appropriation and/or misuse of the Company's reputation, assets, expertise or proprietary/confidential information.

11. COMPLIANCE

Users may not use any of the Services if they are the subject or the target of any economic or financial sanctions imposed, administered or enforced by the U.S. government (including by the Office of Foreign Assets Control of the U.S. Department of the Treasury or the U.S. Department of State), the European Union or any of its member states, the United Nations Security Council or the United Kingdom (including by the Office of Financial Sanctions Implementation of Her Majesty's Treasury).

12. GOVERNING LAW AND JURISDICTION

These GCU are governed by French law. If a dispute arises between a User and the Company and/or each other in relation with the use of the Platform, each of them shall endeavor to settle amicably and, to this extent, to work in good faith with the Company to resolve the dispute to the satisfaction of all parties. Any dispute or claim arising out of or in connection with these GCU or their subject matter or formation (including any non-contractual dispute or claim) shall be subject to the exclusive jurisdiction of the competent courts of Paris, and the parties hereby irrevocably submit to the exclusive jurisdiction of those courts for these purposes.

13. GENERAL PROVISIONS

Force Majeure. Neither party shall be liable to the other for any delay or non-performance of its obligations under these GCU arising from a Force Majeure event. The affected party must immediately notify the other party and shall make every effort to reduce as much as possible the harmful effects resulting from this situation. Each party shall bear all costs incumbent upon it resulting from the occurrence of the Force Majeure event.

Survival. In the event of termination or early termination of these GCU for any reason, or discontinuance or cancellation of the Services, the Platform or a User account, any provision or condition of these GCU intended to survive such termination shall survive and shall not affect the validity of the rights and obligations set forth in the sections entitled “Personal Data”, “Confidentiality”, “Intellectual Property”, “Liability”, “Governing Law and Jurisdiction”, and any other provision of these GCU which, by their nature or by virtue of specific provisions, extend beyond the end or expiry of these GCU.

Rules on evidence. In the event of a dispute, Users and the Company agree that data such as clicks and double clicks, timestamp tokens and digitally certified dates, connection data relating to actions carried out from the account and the certificates and electronic signatures transmitted shall be admissible in court and shall prove the data and facts contained therein as well as the signatures and authentication procedures they express.

Hypertext Links. The GCU may contain hypertext links to third-parties legal documents over which the Company has no control. The User acknowledges and accepts that the documents to which reference may be made through these links may be modified, amended and/or altered and such modification, amendment and/or alteration shall be opposable and enforceable toward the User.

Notices. Any notice provided pursuant to these GCU, including any notice of complaint or event triggering liability, shall be given in writing, by registered letter with acknowledgement of receipt, by e-mail with acknowledgement of receipt or by any other means where receipt can be proven, at the address indicated at the start of these GCU.

APPENDIX 1 – DEFINITIONS

Attack Surface Management (ASM): means the solution allowing the Customer to continuously monitor its Systems for security flaws from an external perspective, enabling the Customer, actively or passively, to (i) discover assets; (ii) identify internet-facing and reachable services; (iii) characterize technologies; (iv) seek potential Vulnerabilities.

Bug Bounty: means the Service enabling the Customer to manage Bug Bounty Programs.

Bug Bounty Program(s): means the program created by the Customer to invite Security Researchers to conduct Tests on its Systems, and which shall contain a comprehensive description of the terms, conditions and requirements to which Security Researchers must agree, including the scope of the Tests defined and authorized by the Customer (designation of the Systems, type of Tests, eligibility, periodicity, exclusions, bonuses, etc.) and the Rewards, if any, that the Customer grants to Security Researchers who are invited to and participate in such Program. The Customer may choose to run the Program in (i) private mode, where only Security Researchers invited by the Customer are informed of the existence of such a Program and are entitled to participate ("**Private Program**"), or (ii) public mode, in which case the Program is published on the Platform and any Security Researcher meeting the conditions set out in the Program may participate ("**Public Program**").

Featured Vulnerability Disclosure Policies ("Featured VDP") Program: means the program created by the Customer and accessible on the Platform to allow Security Researchers to report security issues and Vulnerabilities to the Customer. As with the VDP Service, no Rewards or other compensation are provided to Security Researchers (e.g., Security Researchers will not receive any ranking points).

Customer User(s): means the Customer employee or any third-party (including the Security Researchers in the context of the PTM Service), as appointed by and representing the Customer, who uses the Platform and the Services on behalf of the Customer.

Force Majeure: means an event or circumstance beyond the reasonable control of the affected Party, which could not be reasonably foreseen at the time of acceptance of the GCUs and the effects of which cannot be avoided by appropriate measures, including but not limited to acts of God, fire, explosion, adverse weather conditions, flood earthquake, terrorism, riot, civil commotion, war, hostilities, national and/or multi cross-sector strikes, accidents, riots or civil disturbance, acts of government, lack of power and delays by suppliers or materials shortages of transportation, facilities, fuel, energy, labor, or materials.

Intellectual Property Rights (IPRs): means all intellectual property rights, including but not limited to copyright, software rights, computer program rights, database rights, patent rights, invention rights, trademark rights, distinctive marks, design rights, trade secrets and know-how, domain names, and all other intellectual property rights, whether registered or not, including all filings (or the right to file with any competent national or foreign office), renewals or extensions of such rights and all similar or equivalent rights or forms of protection existing or to be created anywhere in the world.

Pentest Management (PTM): means the solution allowing the Customer to manage and optimize, as a whole, the project of penetration tests campaigns carried out by Security Researchers (from kick off to reporting).

Personal Data: as well as the terms "**Data Subject**", "**Processing**", "**Controller**", "**Data Processor**", "**Recipient**", "**Third Party**", and "**Personal Data Breach**" refer to the definitions in Article 4 of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of Personal Data.

PSP: refers to the Company's trusted third-party Payment Service Provider, subject to the EU Directive 2015/2366 known as "PSD2", which is used by the Company to enable the use of the Wallet functionality on the Platform and to facilitate the payment of Rewards.

Program(s): means either the Bug Bounty Program, the VDP Program, and/or the Featured VDP Program, as applicable.

Reward(s): means the financial reward to be awarded to the Security Researcher by the Customer in consideration of a valid Vulnerability Report in the context of a Bug Bounty Program.

Security Researcher(s): means an independent individual or legal entity, IT security researcher, who may act in a professional or non-professional capacity depending on the context of the Services. As part of (i) the Bug Bounty Service, the security researcher registers on the Platform and submits Vulnerability Reports in return for a Reward (ii) the VDP Service, the security researcher is allowed to provide information on Vulnerabilities through a secured and publicly accessible online form, (iii) the Featured VDP Service, the security researcher registers on the Platform and submits Vulnerability Reports without a claim for Reward or other

compensation (iv) the Pentest Management Service, the security researcher (e.g., the penetration tests company) works for the Customer, as part of a separate agreement, and under the latter's responsibility to conduct penetration tests. For the avoidance of doubt, Security Researchers are neither employees nor subcontractors of the Company.

Systems: means the IT systems and internet-exposed assets (i.e., servers, websites, applications, software, modules, interfaces, connected objects, etc.) designated by the Customer User on the Platform. In the context of Bug Bounty, VDP, Featured VDP, and PTM Services, the systems are those on which the Tests shall be carried out by the Security Researcher. As part of the ASM Service, the Customer defines a detailed and exhaustive list of the systems to be monitored.

Tests: means, in the context of Bug Bounty, VDP, Featured VDP, and PTM Services, the tests which the Customer wishes to have carried out by a Security Researcher. These Tests are technical in nature, including any action to reach or enter a Customer's system, analyze the level of security in place and search for Vulnerabilities. In the context of the ASM Service, the tests consist of continuous automated monitoring of the Systems.

Vulnerability Disclosure Policies (VDP) Program : means a secured and structured channel accessible online via the internet and hosted on the Customer's domain enabling Security Researcher (whether or not registered on the Platform) to report Vulnerabilities found on the Customer's Systems.

Vulnerability(ies): refers to any defect, bug, or security flaw which, individually or cumulatively, has repercussions on the use or operation of the System's functionalities.

Vulnerability Disclosure Policies (VDP): means a secure and structured channel that allows the Security Researcher to report security issues and vulnerabilities to exposed organizations.

Vulnerability Report(s): means the document containing technical data in a standardized format, along with any relevant attachments of a functional nature, describing the Vulnerability discovered and issued by a Security Researcher and submitted to the Customer on the Platform.

Wallet: means the online payment tool available on the Platform to allow the upload, storage and payment of the Rewards. The Wallet functionality is enabled through integration with the PSP which is responsible for payment processing and compliance with applicable financial regulations.

APPENDIX 2 – INVOICING MANDATE (FOR SECURITY RESEARCHERS ONLY)

FOR FRENCH SECURITY RESEARCHERS:

In accordance with the provisions of Article 289-I of the General Tax Code (CGI) and the extract from the Official Bulletin of Public Finance (BOFIP) "VAT - Taxation regimes and reporting and accounting obligations - Rules relating to the preparation of invoices - Issue of invoices", BOI-TVA-DECLA-30-20-10-20140113:

By checking the box "I have read and accept the terms of this invoicing mandate", the Security Researchers expressly authorise YesWeHack to invoice in their name and on their behalf the rewards that are due as part of a Bug Bounty program.

The Security Researchers certify on their honor that they are aware of and comply with the social, fiscal and accounting requirements imposed in France. YesWeHack cannot be held liable in the event of failure of the Security Researcher regarding this verification.

The agent (YesWeHack):

- shall archive or have archived in a secure manner the present invoicing mandate in order to demonstrate its existence to the tax authorities if requested;
- shall carry out all the necessary acts for the issue and availability of invoices to the Security Researchers in their personal account;
- shall archive or have archived in a secure manner the digital invoices and the data contributing to the establishment of the invoice in such a way that the principal can access them as soon as possible.

The principal (the Security Researchers)

- shall archive or have archived in a secure manner the present invoicing mandate in order to demonstrate its existence to the tax authorities if requested;
- shall archive or have archived in a secure manner its electronic invoices and data contributing to the establishment of the invoice;
- shall inform YesWeHack of the information concerning its identification and that relating to the content of the invoices issued in their name and on their behalf and shall transmit the supporting documents as soon as possible by digital means;
- shall bring to the attention of the agent, in case of dispute on an invoice, the information necessary for the modification of the invoice, as soon as possible;
- shall pay to the Public Treasury the tax mentioned on the invoices drawn up in their name and on their behalf;
- shall claim as soon as possible the double of an invoice if they have not received it;
- shall accept any invoice that YesWeHack has issued in their name and on their behalf. This acceptance is done by clicking on the invoice when reading it. For evidentiary purposes, YesWeHack keeps the proof of the click and ensures its reliable time stamping during the invoice archiving period. The Security Researcher acknowledges having a fourteen (14) day period from the reading of the invoice to modify its content. Failing this, the Security Researcher acknowledges having fully accepted it;
- acknowledge being fully responsible for the obligations and consequences in terms of invoicing with regard to VAT;
- acknowledge that they will not be able to argue of the failure or delay of YesWeHack in the establishment of the invoices to avoid the obligation to declare the collected tax when it falls due;
- acknowledge that they remain liable for the VAT due, if applicable pursuant to Article 283, paragraph 3 of the French General Tax Code, when it is wrongly invoiced.

The Invoice established by YesWeHack expressly mentions:

- That it is issued by YesWeHack in the name and on behalf of the Security Researcher expressly identified;

- The exchange rate applied for the conversion into EUR currency;
- The mandatory invoicing information such as the identity of the Security Researcher, the identity of the User, the invoice number, the invoice date, the date of the Bug Bounty Service, the value added tax (VAT) identification, the legally applicable VAT rate, the precise designation of the Bug Bounty, the date or terms of payment, if applicable, for Security Researchers not subject to VAT the mention "VAT not applicable - Article 293 B of the CGI".

FOR NON-FRENCH SECURITY RESEARCHERS

By checking the box "I have read and agree to the terms and conditions of this Invoicing Mandate", the Security Researchers expressly authorise YesWeHack to invoice on their behalf and for their account the rewards owed to him or her under a Bug Bounty program.

The Security Researchers certify on their honor that they are aware of and comply with the applicable social, tax and accounting requirements. YesWeHack cannot be held liable in the event of failure of the Security Researcher regarding this verification.

The agent (YesWeHack):

- shall archive or have archived in a secure manner the present invoicing mandate in order to demonstrate its existence to the tax authorities if requested;
- shall carry out all the necessary acts for the issue and availability of invoices to the Security Researchers in their personal account;
- shall archive or have archived in a secure manner the digital invoices and the data contributing to the establishment of the invoice in such a way that the principal can access them as soon as possible.

The principal (the Security Researchers)

- shall archive or have archived in a secure manner the present invoicing mandate in order to demonstrate its existence to the tax authorities if requested;
- shall archive or have archived in a secure manner its electronic invoices and data contributing to the establishment of the invoice;
- shall inform YesWeHack of the information concerning its identification and that relating to the content of the invoices issued in its name and on its behalf and shall transmit the supporting documents as soon as possible by digital means;
- shall bring to the attention of the agent, in case of dispute on an invoice, the information necessary for the modification of the invoice, as soon as possible;
- shall pay to the tax authorities on which it depends the sums due to it in respect of the invoice;
- shall claim as soon as possible the double of an invoice if they have not received it;
- shall accept any invoice that YesWeHack has issued in their name and on their behalf. This acceptance is done by clicking on the invoice when reading it. For evidentiary purposes, YesWeHack keeps the proof of the click and ensures its reliable time stamping during the invoice archiving period. The Security Researcher acknowledges having a fourteen (14) day period from the reading of the invoice to modify its content. Failing this, the Security Researcher acknowledges having fully accepted it;
- acknowledge being fully responsible for the obligations and consequences in terms of invoicing in respect of any sums owed to the tax authorities on which they depend;
- acknowledge that they will not be able to argue of the failure or delay of YesWeHack in the establishment of the invoices to avoid the obligation to declare the collected tax owed to the tax authorities on which they depend when it falls due;
- acknowledge that they remain liable for the sums owed to the tax authorities on which they depend.

The Invoice established by YesWeHack expressly mentions:

- That it is issued by YesWeHack in the name and on behalf of the Security Researcher expressly identified;
- The exchange rate applied for the conversion into EUR currency;
- The mandatory invoicing information such as the identity of the Security Researcher, the identity of the User, the invoice number, the invoice date, the date of the Bug Bounty Service, the precise designation of the Bug Bounty, the date or terms of payment.